

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: May 18, 2026 at 1:30 pm

Rulings Posted: 5/15/26 at 3 pm

#	Case Name	Tentative
301	<i>M. vs. Saddleback Valley Unified School District</i>	The motion for sanctions filed by defendants, Saddleback Valley Unified School District; John Stamos; Eric Salazar; Mike Hoffman; Justin Safford; and Stephen Chanda (collectively referred to as Defendants) is DENIED. Defendants move for an order imposing terminating and monetary sanctions under Code of Civil Procedure sections 128.5 and 128.7 against plaintiff I.M., a minor, by and through his guardian ad litem, Rebecca McKeown (Plaintiff). As an initial matter, the court will exercise its discretion and consider the untimely filed opposition.

		As to the merits, Defendants failed to show sanctions under section 128.5 or section 128.7 are warranted in this instance. The record before the court shows the October 20, 2022 letter was sent to Plaintiff's former counsel, Wilshire Law Firm, PLC. (See ROA 232, Ex. B.) Knowledge of the October 20, 2022 letter could reasonably be imputed to Plaintiff. (See Civ. Code § 2332.) Plaintiff raised this argument in the Opposition, but Defendants failed to address it in the Reply. Moreover, the court (Judge Hoffer) previously determined the October 20, 2022 letter could possibly support an equitable estoppel defense. (See ROA 179.) In addition, as Plaintiff contends, the third amended complaint (TAC) could reasonably be interpreted as describing what Plaintiff's legal team believed based on the documents the legal team received. Thus, it cannot be said the TAC's equitable estoppel allegations are entirely without merit or were made in bad faith. As to Defendants' argument that the allegations in the TAC regarding Ms. McKeown's conversation with Priscilla Ard are false, the cited deposition testimony does not establish the falsity of the allegations. Defendants also failed to show sanctions are warranted based on their argument that Plaintiff's lawsuit is barred under "multiple affirmative defenses." These arguments are more appropriately raised on summary judgment motion. Plaintiff shall give notice.
302	<i>Global Liquidity Services, LLC vs. Xport Forwarding LLC</i>	Before the court is a Motion for Leave to File a Second Amended Complaint by plaintiffs Global Liquidity Services, LLC d/b/a VendorPayment and Protective Supplies, LLC (collectively referred to as Plaintiffs). The motion is GRANTED.

	Plaintiffs move for relief pursuant to Code of Civil Procedure section 473, subdivision (a)(1). “Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal. App. 4th 1435, 1448.) Plaintiffs provided a sufficient reason for not including the allegations in the SAC in the First Amended Complaint (FAC), namely that discovery taken and responses received after the filing of the FAC, as well as the final report of the receiver, produced facts supporting the new causes of action against Intervenor Purchasing 411 d/b/a Royalty Distribution (Royalty). Although Plaintiffs had previously alleged Royalty was not a bona fide purchaser of the subject goods, Plaintiffs stated they did not have all the facts to support the present allegations until after the FAC had been filed. As for Royalty’s claims it will be prejudiced by the amendments due to loss of evidence, there is nothing to suggest Plaintiffs encouraged Royalty to avoid participating in discovery prior to now, but rather it was the choice of Royalty not to participate normally in discovery to save costs. This is not sufficient to show prejudice to overcome the motion. The motion is granted. Plaintiffs are directed to file and serve the SAC no later than May 20, 2026. Any responsive pleadings are to be filed per code. Parties should appear at the hearing to discuss potentially continuing the current trial date. Plaintiffs shall give notice.
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303	<i>Cipher Entertainment LLC vs. Optimize Digital LLC</i>	The motion to be relieved as counsel of record for plaintiff Cipher Entertainment LLC filed by Marc A. Collins of Collins & Khan LLC is DENIED. There is a discrepancy in the proofs of service. Moving counsel's declaration states the motion papers were served on the client by mail, but the proofs of service show only service by email. Moreover, "[i]f the notice is served on the client by electronic service...it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (C.R.C. rule 3.1362(d)(2).) Moving counsel's declaration contains no such statement. As to the OSC re: dismissal for failure to proceed, plaintiff failed to file a declaration explaining why the court should not dismiss the action for failure to proceed. On the OSC re: dismissal for failure to serve, Jeffers defendant has still not been served 2.5 years into this case. The court dismisses the action without prejudice for failure to proceed. Moving counsel shall give notice.
304	<i>Kellner vs. FCA US, LLC</i>	The motion of plaintiffs Brian Kellner and Alyssa Kellner (collectively referred to as Plaintiffs) for an order to strike and/or tax costs of defendant FCA US, LLC (Defendant) is GRANTED IN PART and DENIED IN PART. Filing and motion fees and court reporter fees are expressly allowed as costs under Code of Civil Procedure section 1033.5. (See Code Civ. Proc. § 1033.5(a)(1), (11).) Plaintiffs failed to meet their burden of demonstrating the costs to be unreasonable or unnecessary. (See <i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29.) The charges for "Other" costs

		are supported by the detailed receipts and appear necessary and reasonably incurred. The motion is thus DENIED as to the foregoing costs. As to the claimed costs for expert witness fees, expert witness fees not ordered by the court are expressly disallowed under Code of Civil Procedure section 1033.5, subdivision (b)(1). Defendant cites Code of Civil Procedure section 1033.5(a)(7) and 1033.5(a)(8) to argue the costs are allowable, but these sections involve ordinary witness fees and fees of expert witnesses ordered by the court. Defendant's memorandum of costs shows the \$2,855 charge is for expert fees, not ordinary witness fees. (See Memorandum of Costs Worksheet at ¶ 8b.) Defendant also submits no evidence showing the fees claimed are for expert fees ordered by the court. The motion is thus GRANTED as to the \$2,855 in expert witness fees. Accordingly, Defendant is awarded total costs in the sum of \$5,565.39 against Plaintiffs. Defendant shall give notice.
305	<i>Maresch vs. Unis Company, Inc.</i>	The Motion to Vacate the Arbitration, etc., filed on 3/2/26 by Plaintiff Guy Maresch (Plaintiff) is GRANTED IN PART. On 2/6/25, an Order was entered, pursuant to stipulation, referring the matter to arbitration at JAMS, and staying this action pending completion of the arbitration. (ROA 48.) By this Motion, Plaintiff asks to vacate the 2/6/25 Order and lift the stay pursuant to Code of Civ. Proc. Section 1281.98, subdivision (a), as defendant Unis Company, Inc. (Defendant) failed to timely pay the fees/costs required to continue the

		arbitration proceeding at JAMS. Defendant concedes that this is so and does not object to the request to resume the action in this court. The request to vacate the 2/6/25 Order and lift the stay is therefore GRANTED. The Court sets a Case Management Conference for this action on 9/28/26 at 8:45am in Dept. C24. Plaintiff's request that a monetary sanction be imposed on Defendant, pursuant to Code of Civ. Proc. Section 1281.99, subdivision (a), is GRANTED IN PART. Although sanctions "shall" be imposed under the circumstances shown here, and the \$471.96 claimed for costs appears reasonable, the Court finds that only \$4,500 should be awarded for fees incurred on this motion. Sanctions in the amount of \$4,971.96 are therefore imposed on Defendant, to be paid to Plaintiff, through his counsel of record, within 30 days. As Plaintiff's request for additional non-monetary sanctions is not supported by evidence sufficient to warrant such relief, that request is DENIED. Plaintiff shall give notice.
307	<i>Executive 57, LLC vs. The Yacht Works Engineering By Jim Vidales, Inc.</i>	Before the court is a Motion for Summary Judgment, or in the Alternative, Summary Adjudication (Motion) filed by plaintiff/cross-defendant Executive 57, LLC (Plaintiff) as to Plaintiff's First Amended Complaint (FAC) and as to defendant/cross-complainant The Yacht Works, Engineering By Jim Vidales, Inc.'s (Defendant for this ruling) Second Amended Cross-Complaint (SACC). The Motion is GRANTED in part and DENIED in part. As an initial note, the court in its discretion will proceed with the merits despite some issues with Plaintiff's separate statement. (<i>Truong v. Glasser</i> (2009) 181 Cal. App. 4th 102, 118.) Furthermore,

while Plaintiff did file a prior motion for summary judgment, that motion was withdrawn after the FAC was filed and the merits were not considered. The court can proceed with the hearing.

First Amended Complaint

The court denies the Motion as to each of Plaintiff's causes of action (COA) in the FAC as Plaintiff has not proved each element of each of Plaintiff's five COA as required. (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff produced no evidence the invoices produced were not 'credible' or that Defendant did not purchase the parts as identified in the subject invoice. Defendant identified at least six different parts providers, yet Plaintiff has not produced any testimony or documentation from any of these sources indicating the parts were not purchased as Defendant contends. As to Plaintiff's claim Defendant produced no evidence the subject parts were installed, Defendant's responses to written discovery requests identified two witnesses regarding the installation. Plaintiff produced no deposition testimony from those individuals, nor did Plaintiff produce any evidence the subject parts were not actually installed.

As Plaintiff has not met its initial burden on the motion by producing evidence supporting each element of each of its COA, the Motion is denied as to each COA.

Second Amended Cross-Complaint

The court grants the Motion as to Defendant's first and second COA, but denies it as to the third COA.

As to the first COA for breach of written contract, the two 'contracts' which Defendant identified were a repair estimate and an invoice for repairs. Defendant later conceded that it did not send the

estimate to Plaintiff and that its allegations made in the SACC related thereto were made in error. The invoice also does not appear to be a written contract, but rather a request for payment. As there is no identification of a written contract that was breached, Plaintiff has met its initial burden of showing one or more elements of the COA cannot be established. (Code of Civil Procedure section 437c, subdivision (p)(2).) Similarly, while the invoice is evidence of an agreement between the parties, the documents identified do not form an oral contract and Defendant did not produce the terms of such contract. Defendant also did not provide any specific opposition to these COA. The Motion is **GRANTED** as to COA Nos. 1 and 2.

As to COA No. 3 for reasonable value of services, Plaintiff's only argument is again that Defendant cannot produce credible evidence regarding the purchase or installation of the subject parts. However, as noted with the COA to the FAC, Plaintiff has not met its initial burden of producing evidence supporting that argument. Similarly, Plaintiff's affirmative defenses are not supported by evidence. The Motion is **DENIED** as to COA No. 3.

Request to Take Judicial Notice:

Granted pursuant to Evid. Code § 452(d) as to Nos. 1 and 2.

Plaintiff's Objections:

Sustained as to Nos. 1 (Improper legal conclusion, no basis, mischaracterizes evidence – Related only to statements regarding McDaniel as MSJ by McDaniel was previously granted summary judgment filed by McDaniel holding there was no written contract for payment by McDaniel to TYW and McDaniel cannot be held personally liable for the contract between TYW and Plaintiff. ROA 259.);

		4 (Improper legal conclusion, no basis, mischaracterizes evidence – Related only to statements regarding McDaniel as noted above; overruled as to Plaintiff.) Overruled as to Nos. 2 (Opp. Ex. B includes copy of estimate sent to McDaniel); 3 and 6 (none of the objections apply); 4 (overruled as to Plaintiff only; objections sustained as to McDaniel); 5 (personal experience, nothing in the objected to item refers to McDaniel’s liability). Plaintiff shall give notice.
308	<i>Thompson vs. Enriching Lives, Inc.</i>	Plaintiff Shane Thompson’s unopposed motion to continue the action on behalf of deceased plaintiff Daniel Thompson is GRANTED. (See Code of Civ. Proc. § 377.31.) Plaintiff Shane Thompson has shown he is decedent’s successor-in-interest within the meaning of Code of Civ. Proc. § 377.11. (See Declaration of Shane Thompson ¶¶ 1-6.) Plaintiff Shane Thompson to give notice.
309	<i>Moshabad vs. Balboa Capital Corporation</i>	Before the court is a Motion to Stay the Case (Motion) pending the outcome of appeal on the underlying arbitration order filed by defendants Balboa Capital Corporation and Ameris Bank (collectively referred to as Defendants). The Motion is GRANTED. The main issue on the motion is whether the Motion is controlled by the Federal Arbitration Act (FAA) or by California state law. The court finds that under the express terms of the arbitration agreement between Defendants and plaintiff Sharona Moshabad (Plaintiff), the FAA applies. (ROA 17; <i>Lamps Plus, Inc. v. Varela</i> (2019) 587 U.S. 176, 183.) As the current appeal pertains to

		the question of the arbitrability of this matter, under the FAA, this action must be stayed pending the outcome of the appeal. (<i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736, 744.) However, even if California state law did apply, the Motion must still be granted. (<i>Smith v. Superior Ct. In & For Los Angeles Cnty.</i> (1962) 202 Cal. App. 2d 128, 131.) Code of Civil Procedure section 1294, subdivision (a), only prohibits automatic stays. The code specifically carves out a stay under Code of Civil Procedure section 916. In such instances, “an appeal from the denial of a motion to compel arbitration automatically stays all further trial court proceedings on the merits.” (<i>Varian Med. Sys., Inc. v. Delfino</i> (2005) 35 Cal. 4th 180, 190.) Therefore under either the FAA or California state law, the Motion must be granted. The court recognizes Plaintiff’s concern spoilation of evidence. The court orders Defendants to preserve all evidence responsive to the written discovery requests Plaintiff previously propounded. This order includes all documents and things which Defendants might otherwise object to producing as objections and producible evidence will be issues for either this court or the arbitrator to decide once the appeal is complete. The matter is stayed pending appeal. The court sets an OSC Re: Status of Appeal for September 21, 2026. Defendants shall give notice.
310	<i>The Learning Light Foundation, Inc. vs. City of Anaheim</i>	Cross-Complainant City of Anaheim’s motion for leave to file the first amended cross-complaint is GRANTED.

		The motion complies with California Rules of Court, rule 3.1324, and there was no prejudicial delay. (See Code of Civ. Proc. § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [applying “a policy of great liberality in permitting amendments”]; see also Declaration of Joseph D. Larsen ¶¶ 5-7.) Cross-Complainant shall file and serve the first amended cross-complaint, as reflected in the supporting declaration of Joseph D. Larsen, Exhibit 1, within 5 days. Cross-Complainant shall give notice.
311	<i>Aghawani vs. Vershinin Dental Corporation</i>	Before the Court is a Motion to Place Documents Under Seal filed by plaintiff Lamis Aghawani. In the body of the motion, plaintiff states “Pseudonymous party has prepared a redacted version (a version with true names and identifying characteristics blacked out) of each of the documents checked above and is lodging it with the court.” However, the Court has not received copies of the redacted documents. Accordingly, the hearing on the motion is CONTINUED to July 6, 2026 at 1:30 p.m. in Dept. C24 to allow plaintiff to lodge copies of the redacted version of the documents. The redacted version of each document should indicate the ROA number of the original unredacted document and all redacted documents must be lodged in Department C24 not less than 10 court days prior to the continued hearing date. Additionally, this action was filed on April 18, 2025 and despite multiple extensions by the Court, the plaintiff has yet to serve the defendant with the Summons and Complaint. Accordingly, the Court sets an Order to Show Cause as to why the

		complaint should not be dismissed for failure to serve the defendant as required by Rule 3.110 on July 6, 2026 at 1:30 p.m. in Dept. C24. Any evidence submitted in response to the OSC is required to be filed 10 court days prior to the hearing. The clerk shall give notice.
312	<i>Bradford Place Santa Ana II Homeowners Association vs. Cruz</i>	Plaintiff Bradford Place Santa Ana II Homeowners Association's motion for publication of summons and complaint is DENIED without prejudice. There is insufficient evidence Plaintiff took reasonable steps to determine the current residence of defendant Adrian Cruz (Defendant), including inquiry as to whether his travel outside the country was permanent or temporary, and/or inquiry (or attempts to serve Defendant) at the property at issue in this litigation. (<i>Watts v. Crawford</i> (1995) 10 Cal.4th 743, 749, n. 5 [the term "reasonable diligence" denotes "a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney"]; see also Judicial Council comments to Code of Civ. Proc. § 415.50.) If his current address is known, there is insufficient evidence of attempts to serve Defendant by substitute service or mail coupled with acknowledgment of receipt. (Code Civ. Proc., § 415.50 [service by publication requires first attempting service through another authorized manner]; see also Code Civ. Proc., § 415.20 § 415.30.) Furthermore, there is insufficient evidence of the existence of a cause of action against Cruz or that Cruz claims an interest in real or personal property subject to the court's jurisdiction. (Code Civ. Proc., § 415.50, subd. (a).) Counsel's one-line sentence in his

		declaration is without proper foundation and insufficient. (<i>Islamic Republic of Iran v. Pahlavi</i> (1984) 160 Cal.App.3d 620, 627; see also Declaration of Michael R. Perry ¶ 7.) Plaintiff shall give notice.
313	<i>Russell vs. Tsumpes</i>	Before the Court is a Motion to Quash Service of Summons filed by defendant Textron Aviation Inc. (TAI). The motion is GRANTED. A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over him or her. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581(h).) Here, TAI asserts the court lacks personal jurisdiction as it relates to Plaintiff's complaint. Defendant submits evidence showing its principal place of business is in Kansas, it designs and manufactures aircraft in Kansas and not in California, it produces manuals for general aviation aircraft in Kansas, and not in California, and it has not targeted California for specific advertising. (Goeken Decl. ¶¶4-8) "When a nonresident defendant challenges personal jurisdiction the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. [Citation.] This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered as an affidavit supplying necessary facts. [Citation.]" (<i>Ziller Elecs. Lab GmbH v. Superior Ct.</i> (1988) 206 Cal.App.3d 1222, 1232-1233.)

	Plaintiff asserts TAI is subject to both general and specific jurisdiction. “For an individual, the paradigm forum for the exercise of general jurisdiction is the individual’s domicile; for a corporation, it is an equivalent place, one in which the corporation is fairly regarded as at home.’ [Citation.] A court with general jurisdiction may hear any claim against that defendant, even if all the incidents underlying the claim occurred in a different State.” (<i>Bristol-Meyers Squibb Co. v. Superior Court</i> (2017) 582 U.S. 255, 262.) Here, the only evidence submitted in opposition to the motion is the declaration of plaintiff’s counsel whereby plaintiff submits four exhibits counsel found on the internet. These four exhibits do not establish general jurisdiction. Exhibit A is a copy of a California Secretary of State filing showing TAI is qualified to do business in California. This is insufficient. (<i>DVI, Inc. v. Superior Ct.</i> (2002) 104 Cal. App. 4th 1080, 1095 [“designation of an agent for service of process and qualification to do business in California alone are insufficient to permit general jurisdiction except for lawsuits arising out of the foreign corporation’s business conducted in the state.”].) Exhibits B & D are copies of screen shots taken by counsel which show maps supposedly identifying service facilities owned and operated by TAI in California. Several of the companies identified appear to be separate from TAI as they have different names. Further, the mere existence of service facilities, without more information, is insufficient to establish general jurisdiction. For example, there is no evidence as to how the service centers relate to TAI’s overall operations, number or percentage of total employees in California, percent of revenue, etc., such that TAI would be
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“essentially at home” in California. (See, e.g., *BNSF Ry.Co. v. Tyrrell* (2017) 581 U.S. 402, 413.)

Exhibit C appears to be a press release which references a prospective sale of airplanes to a university in California. Plaintiff’s argument that “it is clear that Textron employs salespeople who are regularly engaged in selling aircraft to California residents” (Opp at 3:24-25) is not supported by the evidence.

Overall, the evidence submitted is insufficient to establish general jurisdiction over TAI.

For the state to exercise specific jurisdiction over a defendant consistent with due process, “the defendant’s suit-related conduct must create a substantial connection with the forum State.” (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 216.) Such “specific” personal jurisdiction requires a showing of: (1) purposeful availment—the out-of-state defendant purposefully established contacts with the forum state; (2) arising out of—the plaintiff’s cause of action “arises out of” or is “related to” the defendant’s contacts with the forum state; and (3) reasonableness—the forum’s exercise of personal jurisdiction in the particular case comports with “fair play and substantial justice.” (*Burger King Corp. v. Rudzewicz* (1985) 471 US 462, 477-478.)

Here, plaintiff has failed to submit any evidence establishing specific jurisdiction. The only declaration submitted is from counsel who does not address how TAI’s contact with California gives rise to the subject lawsuit. There is no declaration from Mr. Russell as to any interaction he had with TAI. Accordingly, plaintiff has failed to meet his burden to establish specific jurisdiction.

		For the foregoing reasons, the motion to quash is GRANTED and plaintiff's complaint against Defendant Textron Aviation Inc. is DISMISSED WITHOUT PREJUDICE. Defendant shall give notice.
314	<i>Kuljis vs. Pagalidis</i>	The "Motion for Consolidation or Stay of Related Unlawful Detainer Action" filed 26 by Plaintiff Anthony Michael Kuljis (Kuljis) is DENIED As an initial matter, the motion does not appear to have been served on counsel for all defendants. Additionally, the motion presents no authority for the relief requested. Parties shall appear for the CMC to discuss case status. Counsel for Kuljis shall give notice.